Cross-Border Debt Enforcement Strategy: Poland to the Netherlands

Executive Summary

The enforcement of a cross-border debt involving a domestic Polish civil title and a debtor physically residing and working in the Netherlands necessitates a highly sophisticated integration of Polish civil procedure, Dutch execution law, and overriding European Union regulatory frameworks. The objective of this comprehensive analysis is to evaluate the strategic pathways for a creditor seeking to enforce a substantial financial claim—specifically, 155,000 PLN (approximately €36,000) plus statutory delay interest from March 31, 2026—against a Polish national who operates a nominally minimal business in Poland but maintains full-time employment at a corporate entity (Sims Lifecycle Services) within the Eindhoven metropolitan region of the Netherlands.

The analysis reveals a critical structural vulnerability in the creditor's current procedural trajectory: the reliance on a Polish Electronic Writ of Payment (Elektroniczne postępowanie upominawcze, EPU). Due to the stringent interpretation of the service of legal process under European Union law, an EPU payment order that becomes final via the domestic Polish mechanism of fictitious service (*fikcja doręczenia*) faces severe, potentially insurmountable obstacles in cross-border certification and enforcement.[1] Furthermore, while the Dutch enforcement apparatus is characterized by high efficiency and advanced digital integration, the economic reality of the 2026 Dutch protected minimum income threshold (*beslagvrije voet*) mathematically paralyzes the rapid recovery of a 155,000 PLN principal debt through standard wage garnishment against a production-level worker.[4]

This report provides an exhaustive evaluation of the available civil certification routes (European Enforcement Order, Brussels Ia Regulation, European Order for Payment), the mechanics of pre-enforcement asset freezing (European Account Preservation Order), the granular realities of Dutch ground enforcement procedures via a *gerechtsdeurwaarder*, and the asymmetrical leverage provided by the European criminal asset recovery framework (Regulation 2018/1805).

Part I: The Jurisdictional Vulnerability of the Polish EPU Procedure

The foundation of any cross-border enforcement strategy is the legal title upon which it rests. The creditor has initiated proceedings via the Polish Electronic Writ of Payment system (Sąd Rejonowy Lublin-Zachód), expecting a standard payment order (*nakaz zapłaty*). While the EPU is highly efficient, cost-effective, and streamlined for domestic Polish debt recovery, it is inherently misaligned with cross-border jurisdictional realities, particularly when the defendant's center of main interests (COMI) and physical residence are unequivocally located in another Member State.

The Mechanics of Polish Fictitious Service (*Fikcja Doręczenia*)

In domestic Polish civil procedure, if a judicial document cannot be physically handed to the defendant by the postal operator, a notice (*awizo*) is left, typically followed by a second notice.[6] Under Article 505^34 § 1 of the Polish Code of Civil Procedure (Kodeks postępowania cywilnego, or KPC), if the address under which the notices were left matches the defendant's registered address as revealed in the national population database (PESEL), the order is legally deemed to have been successfully served by fiction after the notice period expires.[6]

While domestic Polish law robustly accepts this legal fiction of service to finalize the *nakaz zapłaty* and grant it an enforceability clause (*klauzula wykonalności*), European enforcement mechanisms—specifically those designed to bypass traditional, lengthy exequatur procedures—are fundamentally hostile to this concept. The Court of Justice of the European Union (CJEU) has consistently ruled to protect the fundamental defense rights of foreign-domiciled defendants, prioritizing actual notice over administrative fictions.[8] If a debtor has been residing and working full-time in the Netherlands since 2022, they definitively did not physically receive or interact with an *awizo* left at an outdated address in Poland.

The Ex Officio Repeal Risk under Article 505^34 § 2 KPC

Beyond the European dimension, the Polish KPC itself contains a safeguard that threatens the current strategy. Under Article 505^34 § 2 KPC, if it becomes apparent after the issuance of the payment order that it cannot be served on the defendant within the country (precisely because they reside in the Netherlands), the Polish e-court is obligated *ex officio* to repeal the payment order and discontinue the proceedings.[6]

If a creditor proceeds by passively or actively concealing the debtor's true Dutch address to secure a default judgment via PESEL-matching, the resulting civil title remains highly fragile. The debtor can, at any point upon discovering the enforcement action in the Netherlands, petition the Polish court to reinstate the deadline to file an objection (*sprzeciw*), arguing a fundamental deprivation of the right to defense. Such a petition, supported by Dutch employment contracts and municipal registration data, would instantly invalidate the EPU title, collapsing any dependent cross-border enforcement actions and leaving the creditor liable for wrongful execution costs.

Part II: Transforming the Polish Title for Dutch Execution

To enforce a Polish judgment against assets located in the Netherlands, the domestic title must be ported through an overarching European Union regulation. The specific choice of regulatory instrument dictates the level of administrative friction encountered and delineates the debtor's statutory ability to stall or block the execution. The primary frameworks available are the European Enforcement Order, the Brussels Ia Regulation, and the European Order for Payment.

The European Enforcement Order (Regulation (EC) 805/2004)

The European Enforcement Order (EEO) was established by Regulation (EC) 805/2004 to permit the unhindered free circulation of judgments specifically for *uncontested* claims, entirely abolishing any intermediate proceedings or exequatur in the Member State of enforcement.[10] However, the EEO route is explicitly and fatally incompatible with the creditor's current EPU strategy. The EEO Regulation strictly prohibits the certification of default judgments that rely on fictitious service without concrete proof of actual receipt by the debtor.[1] In the landmark CJEU ruling in *Imtech Marine* (Case C-300/14), the Court unambiguously clarified that certification as an EEO must be denied if the service of the document instituting the proceedings does not meet the minimum standards outlined in Chapter III of the EEO Regulation.[3] These standards expressly preclude purely administrative fictions where the defendant's true whereabouts are either unknown or situated in another jurisdiction.[3]

If the Polish court adheres to established EU jurisprudence, it will definitively refuse to issue the EEO certificate for an *awizo*-based EPU order. If the Polish court mistakenly issues the certificate, the Dutch courts retain independent grounds to halt the enforcement under stringent public policy exceptions regarding the fundamental right to a fair trial. An EPU *nakaz zapłaty* that became final strictly by fiction-of-service does not qualify as an "uncontested" claim within the safe harbor of the EEO framework.[1]

Brussels Ia (Regulation (EU) 1215/2012)

Regulation (EU) No 1215/2012, commonly known as Brussels Ia, represents the most legally viable route for porting a standard, domestically obtained Polish judgment into the Netherlands.[13] Brussels Ia revolutionized European civil procedure by abolishing the exequatur requirement for civil and commercial judgments, operating on the foundational principle of mutual trust among Member States.[13]

To utilize the Brussels Ia framework, the Polish court of origin must issue a standardized certificate pursuant to Article 53 (frequently referred to as the Annex I certificate).[14] Unlike the EEO, Brussels Ia does not strictly block the initial transmission of a default judgment based on domestic service rules at the certification stage. The Dutch bailiff can commence enforcement actions immediately upon receiving the certified Polish judgment and the accompanying Article 53 certificate. The Netherlands typically accepts these certificates in Dutch, and standard multilingual EU forms rarely require extensive, costly translation.[16]

However, Brussels Ia shifts the procedural burden to the enforcement stage. Under Article 45 of Brussels Ia, the debtor is empowered to apply to the Dutch court for a refusal of recognition and enforcement. The primary ground for such refusal is if the judgment was given in default of appearance and the defendant was not served with the document instituting the proceedings in sufficient time and in such a way as to enable them to meaningfully arrange for their defense. If the debtor presents evidence that they were living and working in Eindhoven while the Polish court dispatched legal notices to an unoccupied or former address in Poland, the Dutch court will highly likely suspend or permanently refuse enforcement. Therefore, while Brussels Ia accommodates the EPU title technically, it remains highly vulnerable to a defense-rights challenge.

The European Order for Payment (Regulation (EC) 1896/2006)

While not the creditor's current route, the European Order for Payment (EOP) would have represented the optimal, structurally sound initial strategy.[18] The EOP is a bespoke instrument specifically engineered for cross-border pecuniary claims. Had the creditor filed an EOP application in a competent Polish district court (bypassing the automated EPU e-court) and accurately indicated the debtor's Dutch residential address, the Polish court would have been compelled to utilize the EU Service Regulation (Regulation (EU) 2020/1784) to serve the debtor directly and verifiably in the Netherlands.[8]

Once an EOP is successfully served and finalized without objection, it becomes automatically enforceable across the entirety of the EU without the need for exequatur and entirely free from the vulnerabilities associated with fiction-of-service.[20] If the current EPU title fails, is refused certification, or is repealed due to the address discrepancy, abandoning the domestic title and re-filing via the EOP mechanism is the strongest procedural recommendation for securing unassailable Dutch enforcement.

Cross-Border Civil Enforcement Frameworks

Framework	Primary Use Case	Exequatur Required?	Stance on Fictitious Service	Dutch Enforcement Feasibility
European Enforcement Order (EEO)	Uncontested claims	NO Without any intermediary procedure	⚠ Not permitted. Procedures using such forms may lead to a refusal of certification.	—
Brussels I Regulation (recast)	Cross-border recognition and enforcement of judgments	NO Automatically recognised	Refusal only in exceptional cases (e.g., contrary to public policy in the addressed country)	Requires translation of certificates concerning judgments (Art. 53)
European Order for Payment (EOP)	—	—	Somewhat less stringent than EU Service Regulation	—

Note: Hyphens (—) indicate data points not explicitly detailed in the provided legal source extracts.

Comparison of EU Regulations for cross-border debt enforcement, emphasizing the vulnerability of the European Enforcement Order to fictitious service.

Data sources: University of Innsbruck, European e-Justice Portal, European Commission, EFFORTS Project, CPLJ

Practical Recommendation for the EPU Nakaz

The EPU *nakaz zapłaty* is practically unsuited for the EEO route due to the strict bar on fictitious service.[3] The optimal immediate path is to apply for the Article 53 certificate under Brussels Ia, recognizing that this is a calculated risk. The Dutch bailiff will accept it and initiate enforcement, but the creditor must be prepared for the debtor to file a highly substantive objection under Article 45 of Brussels Ia once their wages or accounts are suddenly attached. If the debtor challenges the enforcement, the creditor should immediately pivot to re-filing a fresh claim under the European Order for Payment (EOP) framework, establishing an unassailable cross-border title.

Part III: Pre-Enforcement Asset Freezing via the EAPO

In cross-border debt recovery, if a creditor possesses evidence or a reasonable suspicion that a debtor may liquidate assets, transfer funds, or systematically hide wealth upon learning of impending enforcement, securing the Dutch bank account before or immediately after obtaining the final title is a critical strategic priority. The European Account Preservation Order (EAPO), governed by Regulation (EU) No 655/2014, provides a highly potent, harmonized, ex parte mechanism to achieve precisely this outcome.[9]

Mechanics, Thresholds, and the Element of Surprise

The defining feature of the EAPO is its capacity to allow a creditor to freeze a debtor's bank account across international borders without any prior notice being served to the debtor, thereby perfectly preserving the tactical element of surprise.[21] A Polish court that holds substantive jurisdiction over the underlying commercial matter is fully competent to issue the EAPO against assets held in the Netherlands.

The evidentiary threshold required to obtain an EAPO varies significantly depending on the chronological stage of the application. If the creditor applies for an EAPO *before* obtaining an enforceable title (for instance, while the EPU or a standard trial is still pending), the evidentiary burden is exceptionally high. The creditor must conclusively demonstrate *fumus boni iuris* (a strong, documentary-backed likelihood of ultimately prevailing on the merits of the case) and *periculum in mora* (an urgent, demonstrable risk that without the preservation order, subsequent enforcement of the claim will be significantly impeded or made entirely impossible).[22]

Furthermore, in pre-title scenarios, the Polish court will almost invariably require the creditor to provide a substantial financial security deposit. This deposit functions to compensate the debtor for any potential economic damages incurred by the freeze should the creditor's underlying claim ultimately fail in court.

Conversely, if the creditor applies for the EAPO *after* successfully obtaining the enforceable Polish title, the evidentiary burden is drastically lowered. The court has already validated the debt, and the requirement for a security deposit is typically waived, significantly reducing the upfront capital risk for the creditor.

The Article 14 Information Request Mechanism

Perhaps the most tactically powerful feature of the EAPO Regulation for this specific case context is the Article 14 mechanism. It is a common operational reality that a creditor may know a debtor is employed in a specific Member State but lacks the precise International Bank Account Number (IBAN) required to execute a freeze. Through the Article 14 tool, a creditor who has already obtained an enforceable title is legally entitled to request the Polish court to trigger an official, state-sanctioned investigation into the debtor's banking details within the Netherlands.[21]

The Polish court receives this application and formally transmits the request to the designated

Information Authority in the Netherlands. The EAPO Regulation permitted Member States flexibility in designing this architecture. Under the decentralized Dutch implementation of the Regulation, the competent information authorities designated to conduct these searches are the Dutch bailiffs (*Gerechtsdeurwaarders*), acting collectively through their national professional association (KBvG).[23]

The administrative fee statutorily prescribed by the Dutch authority to process this comprehensive search of national banking networks is approximately €89.[23] Upon receiving the request, the Dutch bailiff queries the interconnected national banking registers, accurately identifies the specific account receiving the debtor's wage deposits from Sims Lifecycle Services, and applies the preservation order directly to the institution. In procedural terms, the EAPO is the exact, purpose-built cross-border equivalent of a domestic Polish asset freeze (*zabezpieczenie roszczenia*), executing with high efficiency and bypassing the limitations of domestic Polish jurisdiction over foreign accounts.

Part IV: Enforcement Mechanics on the Ground in the Netherlands

Once the creditor possesses an unassailable enforceable title (such as a Polish judgment accompanied by an Article 53 certificate or a finalized EOP), physical and administrative execution within the Netherlands must be carried out by a *Gerechtsdeurwaarder* (Dutch judicial bailiff).

The Role and Instruction of the Gerechtsdeurwaarder

The Dutch bailiff system operates on a dual-mandate model that differs slightly from the Polish *komornik* system. Unlike in Poland, where bailiffs are strictly court-assigned public officials operating within rigid territorial jurisdictions, Dutch bailiffs operate simultaneously as independent public officials appointed by the Crown and as private legal entrepreneurs within commercial partnerships.[25]

A foreign creditor can instruct any bailiff operating in or near the Eindhoven jurisdiction entirely remotely. The creditor or their legal representative simply provides the Dutch bailiff with the certified Polish title, the Article 53 or EOP certificate, and a formal mandate to collect the debt. The bailiff assumes full responsibility for domestic execution.

The Cost Structure: BTAG 2026 and Statutory Fees

The financial architecture of Dutch civil enforcement is heavily regulated to prevent predatory execution costs. The fees that a bailiff can charge to the debtor for carrying out official acts (*ambtshandelingen*) are strictly capped and indexed annually by the Ministry of Justice and Security under the *Besluit tarieven ambtshandelingen gerechtsdeurwaarders* (BTAG).[25]

For the year 2026, the specific statutory BTAG rates (which are exclusive of the standard 21% Value Added Tax) highly relevant to this specific enforcement strategy are precisely codified [27]:

1. **Mandatory Database Queries:** Before legally attaching any assets, the bailiff is obligated to query the Personal Records Database (Basisregistratie Personen, or BRP) to officially confirm the debtor's residential address (statutory cost: €0.89).[28]

Furthermore, to execute a wage garnishment, the bailiff must query the national employee insurance database (UWV polisadministratie) to legally verify the debtor's employment status and salary details at Sims Lifecycle Services (statutory cost: €3.25).[28]

2. **Wage Garnishment (*Loonbeslag*):** The formal execution of a third-party attachment on periodic payments—which constitutes the legal seizure of the debtor's monthly salary directly from the employer—incurs a BTAG fee of €184.91.[27]
3. **Bank Account Attachment (*Bankbeslag*):** The formal execution of an attachment on non-periodic payments—the legal framework under which bank account balances are seized—incurs a BTAG fee of €260.68.[27] If this attachment is preceded by a specific cross-border information request (such as the EAPO Article 14 mechanism), that preliminary request incurs an additional standardized fee of €105.13.[27]

These statutory BTAG costs are legally characterized as enforcement costs and are automatically added to the debtor's total outstanding liability, meaning they are theoretically recoverable. However, it is crucial for the creditor to understand that the bailiff will also charge the creditor a private commercial fee for dossier intake, case management, and eventual collection success (often structured as a percentage of the recovered amount or a flat hourly rate). These commercial fees fall completely outside the protective cap of the BTAG regulations and must be independently negotiated between the creditor and the bailiff firm.[27] Furthermore, while an Article 53 certificate usually requires no translation, if the debtor challenges the enforcement, sworn translations of the underlying Polish judgment into Dutch or English will be required, adding substantial upfront costs that the creditor must bear initially.

Execution Realities: Loonbeslag and Bankbeslag

The primary targets for civil execution in this scenario are the debtor's salary from Sims Lifecycle Services and their Dutch bank accounts.

When a *bankbeslag* is executed, the bank is legally compelled to freeze the exact balance present at the precise microsecond the attachment order is served.[32] It is fundamentally a snapshot in time. Any funds deposited by the employer or third parties even one minute after the execution are not caught by that specific order and remain freely accessible to the debtor.[33] While digital cooperation frameworks established by 2026 allow these attachments to become active across Dutch banking networks within minutes of the bailiff's execution command [34], the temporal limitation remains a significant hurdle.

However, the ultimate operational effectiveness of both *loonbeslag* (wage garnishment) and *bankbeslag* against a natural person residing in the Netherlands is fundamentally and unalterably constrained by the nation's stringent social protection frameworks.

Part V: The Economic Reality and the *Beslagvrije Voet* (2026)

The total viability of enforcing a 155,000 PLN (approximately €36,000) debt through the Dutch civil system hinges entirely upon the mechanics of the *beslagvrije voet*—the legally protected minimum subsistence amount.[32] Dutch law aggressively mandates that a debtor must retain sufficient monthly income to cover basic existential living expenses, including rent, mandatory health insurance, and food.[36] Any wage garnishment executed against an employer or any bank attachment executed against a personal account must strictly respect this unbreachable threshold.[33]

The 2026 Statutory Subsistence Threshold

Following the implementation of the *Wet vereenvoudiging beslagvrije voet* (Simplification of the Protected Earnings Rate Act), the calculation of this minimum has been highly standardized and is now dynamically calculated by the bailiff using automated links to state tax and employment databases.[38] This removed previous loopholes where debtors could artificially inflate their protections.

For the fiscal year 2026, the maximum *beslagvrije voet* for a single person residing in the Netherlands with no dependents is legally capped at **€ 2,191.42 per month**.[4] This represents a hard floor.

Furthermore, if the debtor's baseline housing costs or out-of-pocket healthcare expenses are exceptionally high relative to national averages, they retain the statutory right to petition the executing bailiff or the subdistrict court (*kantonrechter*) to temporarily raise this protected amount even higher, further reducing the attachable margin.[35]

The Mathematical Verdict on Recovery and Feasibility

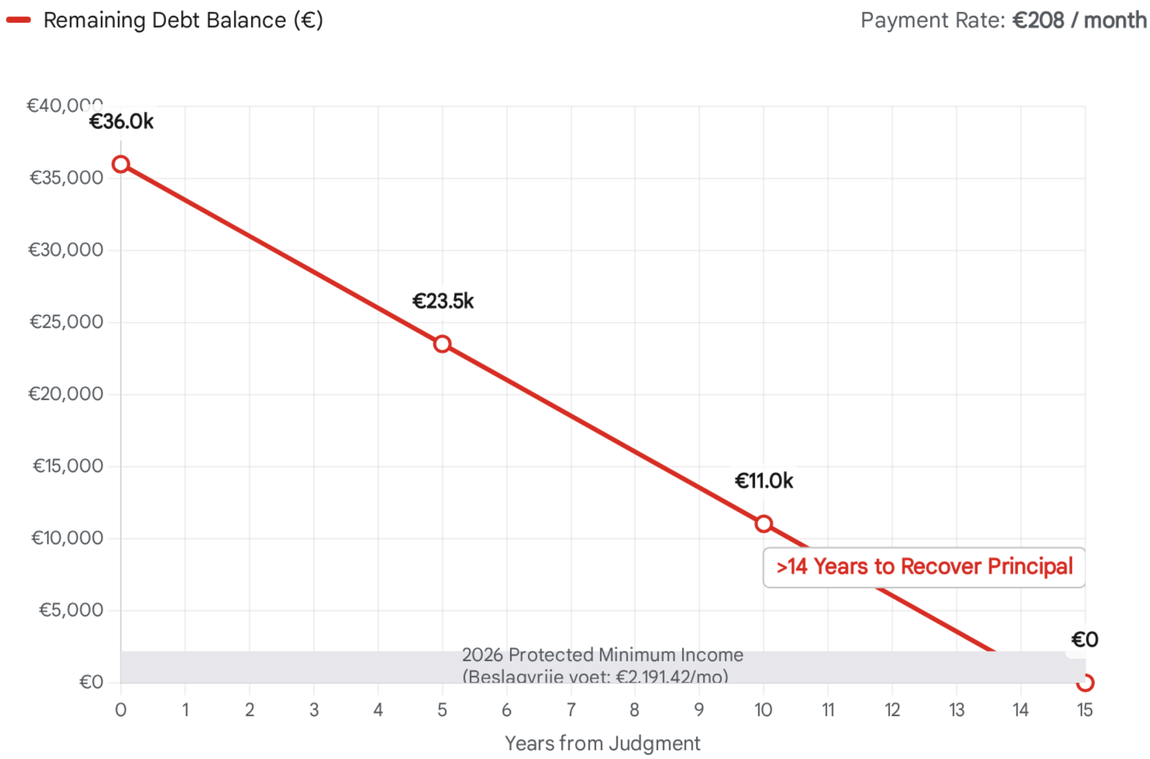
To determine if cross-border enforcement is economically rational for a 155k PLN claim, one must calculate the projected attachable margin (*afloscapaciteit*) of the debtor's income.

The debtor is currently employed as a production line worker at Sims Lifecycle Services in the Eindhoven metropolitan region. While upper-managerial corporate salaries at Sims Lifecycle Services in global markets average well over $100,000 [43], standard logistics, sorting, and production line workers in the Dutch recycling and e-waste sector typically earn wages ranging between the statutory minimum wage and €2,800 gross per month, highly dependent on shift allowances and overtime.[45] Assuming a highly optimistic scenario where the debtor earns a slightly elevated wage due to continuous overtime or tenure, resulting in a net monthly income of approximately €2,400.

The Civil Recovery Equation:

- **Estimated Net Monthly Wage:** € 2,400.00
- **Minus *Beslagvrije Voet* (2026 Single Person):** - € 2,191.42
- **Attachable Margin (Maximum Recovery):** = € 208.58 per month.

Projected Recovery Timeline via Dutch Wage Garnishment



Simulation of debt recovery assuming a €36,000 principal (approx. 155,000 PLN) against an attachable margin of €208/month, strictly limited by the 2026 Dutch protected minimum income.

Data sources: Het Juridisch Loket, Salaris Van Morgen

The creditor's principal claim is 155,000 PLN, which translates to roughly **€36,000**.
If the Dutch bailiff successfully and continuously garnishes €208.58 every single month without interruption, it will take **172 months (over 14.3 years)** purely to recover the principal amount. This calculation completely ignores the compounding statutory delay interest accruing under Polish law from March 31, 2026. The annual interest accumulation on a 155,000 PLN debt will highly likely mathematically outpace the €2,500 annual recovery rate generated by the garnishment. This means the total outstanding debt will perversely *grow* larger every year rather than shrink in real terms, rendering the debt theoretically infinite under purely civil execution mechanics.
Furthermore, if the debtor concurrently operates a sole proprietorship (JDG) alongside their employment, Dutch law does allow purely corporate bank accounts to be frozen in full without

the application of a *beslagvrije voet*.[32] However, if personal and business funds are commingled in a single retail account, or if the debtor ceases active trading and relies solely on their Sims Lifecycle salary, the €2,191.42 protection stands absolutely firm against corporate and civil creditors alike.

The Honest Economic Verdict

Therefore, the unvarnished economic verdict on standard civil enforcement in the Netherlands for a claim of this magnitude against a low-to-medium income wage earner is that it is structurally and practically ineffective as a direct financial recovery tool. Its primary, if not sole, utility lies not in forced, passive liquidation of the debt over decades, but rather in the severe psychological pressure and intense administrative friction it causes the debtor. Having bank cards frozen, enduring the embarrassment of employers being forced by court order to interact with bailiffs, and suffering severe damage to national credit scoring systems serves as massive leverage. This leverage is strategically deployed to force the debtor to the negotiating table to offer a voluntary lump-sum settlement, often sourced from undeclared savings, family members, or alternative credit lines.

Part VI: Interaction with the Criminal Track (Regulation 2018/1805)

Given the severe mathematical limitations of civil enforcement caused by the *beslagvrije voet*, the creditor has correctly inquired about the viability of criminal asset freezing mechanisms—specifically referencing Article 291 of the Polish Code of Criminal Procedure (KPK)—and their intersection with the debtor's Dutch assets.

If the underlying debt stems from a rigorously documented fraud (for example, a written promise to refund funds that covers a deliberate, pre-meditated misappropriation rather than a mere civil breach of contract), the creditor can file a formal notification of a suspected crime. If a Polish prosecutor initiates proceedings under Article 286 § 1 of the Polish Penal Code (KK) for fraud, the prosecutor holds the authority to issue a formal decision on the freezing of assets (*postanowienie o zabezpieczeniu majątkowym*) under Article 291 KPK to proactively secure future victim restitution under Article 46 KK.[46]

The Power of Mutual Recognition

Historically, enforcing such a freeze across borders required cumbersome Mutual Legal Assistance (MLA) treaties. However, since December 2020, Regulation (EU) 2018/1805 mandates the direct, nearly automatic mutual recognition of freezing and confiscation orders in criminal matters across the entire European Union.[47] This framework is highly aggressive and dramatically fast-tracked compared to equivalent civil procedures.

Under this Regulation, the Polish prosecutor essentially acts as the issuing authority. They generate a standardized freezing certificate and transmit it directly to the designated executing authority in the Netherlands—the Central Judicial Collection Agency (*Centraal Justitieel Incassobureau*, or CJIB).[50] The Dutch authorities are legally obligated by EU law to execute the freezing order with extreme rapidity, operating under a strict 48-hour deadline for formal recognition in urgent cases, followed by a maximum of a further 48 hours to physically execute the freeze against the assets.[49]

This criminal mechanism possesses profound strategic advantages for the creditor:

1. **State-Sponsored Intelligence and Execution:** The Dutch authorities utilize vast state resources, police intelligence, and financial intelligence units to trace the assets. The creditor does not pay BTAG bailiff fees, translation costs, or upfront EAPO security deposits.
2. **Unmatched Psychological Leverage:** The direct involvement of the CJIB and the Dutch Public Prosecution Service (*Openbaar Ministerie*) abruptly escalates the situation from a manageable civil commercial dispute to an active transnational criminal investigation, vastly increasing the existential pressure on the debtor.
3. **Prioritization of Victim Restitution:** The Regulation explicitly expands the traditional scope of state-centric freezing orders to heavily prioritize direct restitution and compensation to victims.[49] If assets are ultimately confiscated, Dutch and Polish authorities are mandated to coordinate to ensure the victim is fully compensated before any routine state asset-sharing or treasury absorption occurs.[50]

The Ultimate Caveat: Proportionality in Criminal Execution

It is strategically crucial to understand that while Regulation 2018/1805 is a formidable instrument of state power, it is not immune to fundamental European human rights doctrines or national limits on execution. Recital 13 dictates that these specific rules apply strictly to criminal matters, ensuring they cannot be utilized to bypass civil procedure safeguards.[49]

More importantly, when the CJIB executes a criminal conservatory bank attachment (*strafrechtelijk conservatoir beslag*) within the Netherlands on behalf of a Polish prosecutor, it must still rigorously adhere to the principles of proportionality embedded in Dutch constitutional law. Dutch jurisprudence explicitly confirms that even in aggressive criminal freezing orders aimed at securing victim compensation, the execution must not drop the suspect below the absolute minimum subsistence level. The Supreme Court of the Netherlands (Hoge Raad) has definitively upheld that a criminal attachment on a bank account must be lifted, suspended, or modified if it practically results in the individual losing access to funds equating to their statutory *beslagvrije voet*.[42]

Therefore, while the criminal track saves the creditor thousands of euros in upfront bailiff and legal fees and applies massive prosecutorial pressure, the ultimate liquid cash that can be legally extracted from the debtor's monthly wages remains mathematically bound by the identical €2,191.42 protective threshold that frustrates the civil track.

Strategic Conclusions

The pursuit of a 155,000 PLN claim against a Polish national residing and working in the Netherlands requires a decisive pivot away from insular, highly automated Polish civil procedures and demands the embrace of robust European instruments. Based on the deep integration of Polish procedural law, European regulations, and the stark economic realities of Dutch execution, the following strategic roadmap is indicated:

First, the creditor must abandon the EPU fiction-of-service route. If the Polish e-court issues a *nakaz zapłaty* based on a PESEL-matched *awizo*, attempting to certify it as a European Enforcement Order (EEO) will highly likely fail judicial scrutiny under the *Imtech Marine* precedent, wasting both crucial time and translation resources.

Second, if the EPU is successfully challenged or repealed due to the debtor's foreign domicile under Article 505^34 § 2 KPC, the creditor should immediately re-file the substantive claim via the European Order for Payment (EOP) procedure. The EOP guarantees proper, verifiable cross-border service and bypasses exequatur entirely, resulting in a fundamentally secure and unassailable title for Dutch enforcement.

Third, once a secure title is acquired, the creditor should apply to the Polish court for a European Account Preservation Order (EAPO), specifically invoking the Article 14 mechanism to compel the Dutch KBvG to pinpoint the debtor's specific bank account. At approximately €89, this remains the most cost-effective and powerful intelligence-gathering tool in European civil procedure.

Finally, the creditor must strategically internalize the economic reality that instructing a Dutch *Gerechtsdeurwaarder* to execute a *loonbeslag* against a Sims Lifecycle Services production worker will only yield approximately €200 per month due to the strict 2026 *beslagvrije voet* of €2,191.42. The creditor will mathematically never recover 155,000 PLN through passive garnishment. The true goal of the Dutch bailiff intervention, or a parallel criminal freezing order via Regulation 2018/1805, is not passive liquidation, but rather the weaponization of severe administrative friction to force the debtor into a negotiated, externally funded lump-sum settlement.

Works cited

1. 24th Conference Corporate Entities at the Market and European Dimensions (May 19th, accessed on June 3, 2026, https://www.uibk.ac.at/media/filer_public/2b/19/2b19905a-dc78-4085-94c2-2f3a03ce183f/15_a_general_overwiev_of_enforcement_in_commercial_and_civil_matters_in_austria_2016_1.pdf
2. European Order for Payment Procedure - Pravna fakulteta Maribor, accessed on June 3, 2026, https://www.pf.um.si/site/assets/files/3539/national_report_slovenia.pdf
3. Template for the EFFORTS Practice Guide for outgoing or incoming judgments, court settlements and authentic instruments certified as European Enforcement Orders, accessed on June 3, 2026, https://efforts.unimi.it/wp-content/uploads/sites/8/2022/09/EEO.pdf
4. accessed on June 3, 2026, https://www.juridischloket.nl/schulden-en-incasso/deurwaarder-en-beslaglegging/beslagvrije-voet/#:~:text=Bent%20u%20alleenstaand%20zonder%20kinderen,2026%20maximaal%20%E2%82%AC%202.526%2C69.
5. Beslagvrije voet in 2026: nieuwe maximumbedragen per 1 januari - Salaris Vanmorgen, accessed on June 3, 2026, https://www.salarisvanmorgen.nl/2026/01/04/beslagvrije-voet-in-2026-nieuwe-max

imumbedragen-per-1-januari/

6. uchylenie nakazu zapłaty w przypadku niemożliwości jego doręczenia] - Art. 505(34). -... - Dz.U.2026.468 t.j. - LEX, accessed on June 3, 2026, https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/kodeks-postepowania-cywilnego-16786199/art-505-34
7. Po zmianie procedury nie każde roszczenie do e-sądu - Prawo.pl, accessed on June 3, 2026, https://www.prawo.pl/prawnicy-sady/elektroniczna-procedura-upominawcza-juz-nie-kazde-roszczenie-do,498176.html
8. Recognition and Enforcement of Judgments | CPLJ, accessed on June 3, 2026, https://www.cplj.org/publications/14-7-recognition-and-enforcement-of-judgments
9. Due Process - Protecting the Right to Fair Trial of Foreign Defendants in Cross-Border Proceedings: Comparing Practices, Investigating Conflicting Principles, and Searching for Common Standards, accessed on June 3, 2026, https://www.cplj.org/publications/14-5-due-process-protecting-the-right-to-fair-trial-of-foreign-defendants-in-cross-border-proceedings-comparing-practices-investigating-conflicting-principles-and-searching-for-common-standards
10. or, how the English Courts and the Spanish Constitutional Court prevented a cross-border injustice threatened via the EEO Regulation in the litigation concerning Gerardo Moreno de la Hija and Christopher Frank Carandini Lee - Conflict of Laws, accessed on June 3, 2026, https://conflictoflaws.net/2020/the-artist-the-actor-and-the-eeo-regulation-or-how-the-english-courts-and-the-spanish-constitutional-court-prevented-a-cross-border-injustice-threatened-via-the-eeo-regulation-in-the-litigation-con/?print=print
11. Private International Law: A Hungarian Perspective, accessed on June 3, 2026, https://real.mtak.hu/205204/1/ssrn-484086717.pdf
12. Mutual recognition of judgments - European Commission, accessed on June 3, 2026, https://commission.europa.eu/law/cross-border-cases/judicial-cooperation/types-judicial-cooperation/mutual-recognition-judgments_en
13. Brussels I Regulation (recast) | European e-Justice Portal, accessed on June 3, 2026, https://e-justice.europa.eu/topics/taking-legal-action/european-judicial-atlas-civil-matters/brussels-i-regulation-recast_en
14. Collection of Belgian implementing rules | Efforts, accessed on June 3, 2026, https://efforts.unimi.it/wp-content/uploads/sites/8/2021/06/Collection-of-Belgian-implementing-rules.pdf
15. Brussels I Regulation (recast) | European e-Justice Portal, accessed on June 3, 2026, https://e-justice.europa.eu/topics/taking-legal-action/european-judicial-atlas-civil-matters/brussels-i-regulation-recast/bg_en
16. Brussels IIb Regulation - Aldricus, accessed on June 3, 2026, https://aldricus.giustizia.it/wp-content/uploads/2022/09/Practice-Guide-for-the-application-of-the-Brussels-IIb-Regulation_EU_EN.pdf
17. European e-Justice Portal - Maintenance obligations, accessed on June 3, 2026,

https://webgate.ec.europa.eu/e-justice/355/EN/maintenance_obligations?FINLAND&member=1
18. Act CXXX of 2016 on the Code of Civil Procedure (as in force on 1 September 2023), accessed on June 3, 2026, https://njt.jog.gov.hu/jogszabaly/en/2016-130-00-00
19. ELI/UNIDROIT Model European Rules of Civil Procedure, accessed on June 3, 2026, https://www.europeanlawinstitute.eu/fileadmin/user_upload/p_eli/Publications/200925-eli-unidroit-rules-e.pdf
20. Practical Application of European Union Regulations Relating to European Union Level Procedure in Civil Cases, accessed on June 3, 2026, https://www.justdigi.ee/sites/default/files/documents/2021-07/Euroopa%20Liidu%20tasandil%20tsiviilkohtumenetlust%20reguleerivate%20m%C3%A4%C3%A4ruste%20rakenduspraktika.%20Balti%20riikide%20kogemus.pdf
21. Carlos Santaló Goris - Revistas UC3M, accessed on June 3, 2026, https://e-revistas.uc3m.es/index.php/CDT/es/article/download/5194/3663/8360
22. Every Euro Counts ... and So Does Every Second - eucrim, accessed on June 3, 2026, https://eucrim.eu/articles/every-euro-counts-and-so-does-every-second/
23. Handbook on the national information authorities responsible for investigating the debtor's bank accounts under Article 14 of the EAPO Regulation (No. 655/2014) - European Institute of Public Administration (EIPA), accessed on June 3, 2026, https://www.eipa.eu/publications/practitioner-guide/handbook-information-authorities-eapo-regulation/
24. Handbook on the national information authorities responsible for investigating the debtor's bank accounts under Article 14 of the EAPO Regulation - European Institute of Public Administration (EIPA), accessed on June 3, 2026, https://www.eipa.eu/wp-content/uploads/2023/05/EIPA-Practitioner-Guide_EAPO-Regulation.pdf
25. Tarievenstelsel - KBvG, accessed on June 3, 2026, https://www.kbvg.nl/wetten-en-regels/tarievenstelsel
26. Compendium Beslag- en executierecht - Schuldinfo, accessed on June 3, 2026, https://schuldinfo.nl/fileadmin/Publicaties/Bescherming_van_het_bestaansminimum_Van_eigen_belang_naar_gezamenlijk_belang.pdf
27. BTAG 2026- Tarieven gerechtsdeurwaarders per 1 januari 2026 - e-Legal incasso advocaten, accessed on June 3, 2026, https://e-legal.nl/btag
28. Btag m.i.v. 01-01-2026 excl. btw m.i.v. 01-01-2026 incl. 21% btw 2 a oproeping in een vorderingsprocedure, dagvaarding, oproepin - KBvG, accessed on June 3, 2026, https://www.kbvg.nl/cms/public/files/2025-12/1765956980_btag-1-januari-2026.pdf?194359091b
29. Btag 2 a oproeping in een vorderingsprocedure, dagvaarding, oproeping of aanzegging die het geding inleidt, Inleidingen tot besl - KBvG, accessed on June 3, 2026, https://www.kbvg.nl/cms/public/files/Btag-tarieven/btag-1-januari-2025.pdf?20c87796ae

30. Tarief per 01-01-2026 Ambtshandelingen (art. 2 Btag) Excl. btw in € Incl. btw in € Dagvaarding/oproeping die geding inleid - Hafkamp, accessed on June 3, 2026, https://hafkamp.nl/wp-content/uploads/2026/01/Btag%202026.pdf
31. Tariefkaart 2026 | PUURNouta, accessed on June 3, 2026, https://puurnouta.nl/wp-content/uploads/2026/01/PUURNouta-Gerechtsdeurwaarders-en-Incasso-Tariefkaart-2026.pdf
32. Civil Litigation Lawyers Netherlands 2026: Conservatoir Beslag, Bank Guarantees & Lifting Rules - Global Law Experts, accessed on June 3, 2026, https://globallawexperts.com/civil-litigation-lawyers-netherlands-2026-conservatoir-beslag-bank-guarantees-lifting-rules/
33. Beslag bankrekening: mag dat? - Het Juridisch Loket, accessed on June 3, 2026, https://www.juridischloket.nl/schulden-en-incasso/deurwaarder-en-beslaglegging/beslag-op-bankrekening/
34. Bankbeslag 2026: Wat valt eronder? Beslagvrije bedragen & Regels - Credifin, accessed on June 3, 2026, https://credifin.nl/kennisbank/wat-valt-er-wel-of-niet-onder-het-bankbeslag-de-regels-in-2026/
35. Hoe bereken ik mijn beslagvrije voet? - Het Juridisch Loket, accessed on June 3, 2026, https://www.juridischloket.nl/schulden-en-incasso/deurwaarder-en-beslaglegging/beslagvrije-voet/
36. Wat Is Een Vordering In Dutch Law? Know More Now, accessed on June 3, 2026, https://lawandmore.eu/wat-is-een-vordering-2/
37. Exempt Income Threshold for Benefits in Rotterdam | Rechtshulp, accessed on June 3, 2026, https://rechtshulprotterdam.nl/en/encyclopedie/beslagvrije-voet-toeslagen
38. Staatsblad 2019, 45 | Overheid.nl > Officiële bekendmakingen, accessed on June 3, 2026, https://zoek.officielebekendmakingen.nl/stb-2019-45.html
39. De nieuwe, vereenvoudigde, beslagvrije voet - KBvG, accessed on June 3, 2026, https://www.kbvg.nl/download/2020-12/kbvg-dossier-vbvv-1.08-def.pdf
40. Betalingsvordering en beslagvrij bedrag - Belastingdienst, accessed on June 3, 2026, https://www.belastingdienst.nl/wps/wcm/connect/bldcontentnl/standaard_functies/prive/contact/rechten_en_plichten_bij_de_belastingdienst/beslag-door-belastingdienst/betalingsvordering-en-beslagvrije-voet
41. Hoe weet ik of mijn beslagvrije voet klopt? | Rijksoverheid.nl, accessed on June 3, 2026, https://www.rijksoverheid.nl/onderwerpen/schulden/vraag-en-antwoord/beslagvrije-voet-controleren
42. Het oordeel van de rechter | Rechtspraak, accessed on June 3, 2026, https://www.rechtspraak.nl/organisatie-en-contact/organisatie/rechtbanken/rechtbank-amsterdam/nieuws/het-van-de-rechter
43. Sims Lifecycle Services Inc Average Salary, Pay Ranges & Benefits, accessed on June 3, 2026, https://www.salary.com/research/company/sims-lifecycle-services-inc-salary

44. How many employees work at Sims Recycling Solutions? - Revelio Labs, accessed on June 3, 2026, https://www.reveliolabs.com/companies/sims-recycling-solutions/employees/
45. $22-$36/hr Sims Recycling Jobs (NOW HIRING) May 2026 - ZipRecruiter, accessed on June 3, 2026, https://www.ziprecruiter.com/Jobs/Sims-Recycling
46. Chapter 9 Poland: EAW, EIO and Freezing and Confiscation Orders – Implementation and Transposition Process and Its Deficiencies in - Brill, accessed on June 3, 2026, https://brill.com/edcollchap-oa/book/9789004705791/BP000017.xml
47. Eurojust Report on Regulation 2018/1805 on the Mutual Recognition of Freezing and Confiscation Orders - European Union, accessed on June 3, 2026, https://www.eurojust.europa.eu/publication/eurojust-report-regulation-20181805-mutual-recognition-freezing-and-confiscation-september2025
48. Regulation - 2018/1805 - EN - EUR-Lex - European Union, accessed on June 3, 2026, https://eur-lex.europa.eu/eli/reg/2018/1805/oj/eng
49. New EU rules speed up confiscation and freezing of criminal assets - CMS.law, accessed on June 3, 2026, https://cms.law/en/rou/legal-updates/New-EU-rules-speed-up-confiscation-and-freezing-of-criminal-assets
50. The Netherlands - FATF, accessed on June 3, 2026, https://www.fatf-gafi.org/content/dam/fatf-gafi/mer/Mutual-Evaluation-Report-Netherlands-2022.pdf.coredownload.inline.pdf
51. Policy Manual Schadefonds Geweldsmisdrijven - 1 January 2026, accessed on June 3, 2026, https://schadefonds.nl/wp-content/uploads/2025/12/Policy-Manual-Schadefonds-Geweldsmisdrijven-1-January-2026-1.pdf
52. RECOVER (GA101091375) The subject matter of the Regulation, accessed on June 3, 2026, https://recover.lex.unict.it/wp-content/uploads/2024/12/Pagine-da-handbook-completo-15.pdf
53. eurojust support for the transmission, recognition and execution of freezing orders within the eu and towards third countries, accessed on June 3, 2026, https://www.unafei.or.jp/publications/pdf/RS_No117/No117_13_PART_TWO_Visiting_Experts_Paper.pdf
54. GUIDELINES on the practical implementation of the REG (wp3). - recover, accessed on June 3, 2026, https://recover.lex.unict.it/wp-content/uploads/2024/11/Presentazione-GUIDLINES-wp3.pdf
55. ECLI:NL:HR:2023:416, Hoge Raad, 22/00822 - Uitspraken - De Rechtspraak, accessed on June 3, 2026, https://uitspraken.rechtspraak.nl/details?id=ECLI:NL:HR:2023:416